

23AVCV00100 23AVCV00100

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-25

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Case Number: 23AVCV00100 Hearing Date: August 25, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ARTURO CARDENAS,

Plaintiff,

v.

AMERICAN HONDA MOTOR CO., INC., a California Corporation; and DOES 1 through 10, inclusive,

Defendants.

Case Number 23AVCV00100

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 25, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action arising from Plaintiff Arturo Cardenas' (Plaintiff) purchase of a new vehicle from Defendant American Honda Motor Co., Inc. (Defendant) and Defendant's alleged violation of its statutory obligations under the Song-Beverly Consumer Warranty Act (Song-Beverly Act). Plaintiff moves the Court for an order of attorney's fees, costs, and expenses pursuant to the parties' settlement agreement.

On January 26, 2023, Plaintiff filed a complaint against Defendant, asserting two causes of action for (1) violation of the Song-Beverly Act for breach of express warranty and (2) violation of the Song-Beverly Act for breach of implied warranty.

Specifically, Plaintiff alleges that on May 23, 2021, Plaintiff entered into a warranty contract with Defendant regarding a 2021 Honda Civic (Vehicle). (Compl., ¶ 14.) Plaintiff claims that during the warranty period, the Vehicle contained or developed defects and nonconformities to warranty which impaired the use, value, or safety of the Vehicle. (Compl., ¶¶ 15-16.) Plaintiff presented the Vehicle to Defendant, who failed to repair the Vehicle or offer restitution or replacement of the Vehicle in violation of the Song-Beverly Act. (Compl., ¶¶ 17-22.)

On March 17, 2023, Defendant filed its answer.

On January 17, 2024, Plaintiff filed a motion to compel further discovery responses to Plaintiff's Request for Production, Set One.

On February 27, 2024, the Court granted Plaintiff's request and awarded monetary sanctions in the amount of \$1,000 on Defendant and its counsel of record pursuant to Code of Civil Procedure section 2023.050.

On August 20, 2024, Plaintiff filed a Motion for Summary Adjudication as to Defendant's fifth and eighth affirmative defenses.

On February 11, 2025, the Court granted Plaintiff's Motion for Summary Adjudication.

On September 4, 2025, Plaintiff filed a notice of settlement of the entire case.

On February 13, 2026, the Court dismissed the case without prejudice and with the Court retaining jurisdiction pursuant to Code of Civil Procedure section 664.6.

On February 27, 2026, Plaintiff filed a Memorandum of Costs.

On April 27, 2026, Plaintiff filed the present Motion for Attorney's Fees.

On August 11, 2026, Defendant filed its opposition.

On August 18, 2026, Plaintiff filed his reply.

II. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: “If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys’ fees that are reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-19.) “A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case.” (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448 [citations omitted].) “The basis for the trial court’s calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time.” (*Horsford v. Board of Trustees Of California State University* (2005) 132 Cal.App.4th 359, 395.) “The law is clear, however, that an award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (*Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by *Lakin v. Watkins Associated Indus.* (1993) 6 Cal. 4th 644, 664; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 “[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs’ attorney, are satisfactory evidence of the prevailing market rate.”].)

III. Discussion

Application – Plaintiff, the prevailing party in this action (*Kirnos Decl., Ex. C, ¶ 5*), requests an order for attorney’s fees, costs, and expenses amounting to \$47,792.45 pursuant to a signed settlement agreement (Settlement), the Song-Beverly Consumer Warranty Act, California Civil Code section 1794, subdivision (d), and calculated using the lodestar formula. (Notice of Motion, p. i:2-8, i:12-13.) This total is comprised of (1) \$28,199.50 for attorney’s fees, (2) \$14,099.75 for an enhancement of attorney’s fees by a multiplier of 1.5, and (3) \$5,493.20 for costs and expenses. (Notice of Motion, p. i:9-12.)

a. Reasonableness of Attorney’s Fees Amount

As discussed, the standard method for calculating reasonable attorney’s fees is the lodestar method, which determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys’ Hourly Rates

The Declaration of Roger Kirnos, Plaintiff’s counsel, sets forth the autobiographies and hourly rates for 10 billing attorneys and 2 billing paralegals who worked on this case. The hourly rates and billing codes and are as follows:

1. Roger Kirnos (RK), Managing Partner of Knight Law Group, LLP (KLG) (\$600/hr.) – admitted to the California Bar in 2012;
2. Chris Swanson (CS), Partner of KLG (\$525/hr.) – admitted to state bar in 2011;
3. Emma Erickson-Kery (EEK), Former Law Clerk, then Associate Attorney of KLG (\$175/hr. Clerk rate, \$295/hr. Attorney rate) – admitted to the California Bar in 2023;
4. Elvira Kamosko (EK), Associate Attorney of KLG (\$350/hr.) – admitted to the California Bar in 2021;
5. Harita Nandivada (HN), Associate Attorney of KLG (\$375/hr.) – admitted to the California Bar in 2021;
6. Kirk Donnelly (JKD), of Counsel with KLG (\$500/hr.) – admitted to the California Bar in 1995;
7. Keishunn Johnson (KJ), Associate Attorney of KLG (\$375/hr.) – admitted to the California Bar in 2023;
8. Nitin Sapra (NS), Senior Attorney of KLG (\$450/hr.) – admitted to the California Bar in 2019;
9. Timothy Lipinek (TL), Associate Attorney of KLG (\$415/hr., \$450/hr., \$500/hr.) – admitted to the California Bar in 2021;
10. Thach Tran (TPT), Associate Attorney of KLG (\$425/hr.) – admitted to the California Bar in 2016;
11. Diana Folia (DF), Senior Paralegal of KLG (\$250/hr.) – not admitted to practice;
12. Kasey Xicara (KX), Paralegal of KLG (\$145/hr.) – not admitted to practice.

(Karnos Decl., ¶¶ 27-28.)

Plaintiff's counsel Kirnos provides the billing procedures, accolades, and notable published and unpublished case law for Knight, including the firm's appellate case work. (Karnos Decl., ¶¶ 17-22, 25.) Kirnos also provides a plethora of case law establishing other courts' acceptance of hourly rates of attorneys who have worked on similar Song-Beverly Actions for reference of the general community rates for similar work. (Karnos Decl., ¶ 29, Exs. D - FF.)

Defendant argues that Plaintiff's counsel's rates are excessive and provides numerous trial court cases holding such rates are unreasonable. (Opp., p. 5:18-6:4, 8:14-23.) The Court will address overstaffing arguments in the below section. Defendant argues that each billing attorney and paralegal's rates should be reduced, providing a chart of proposed reductions for all timekeepers. (Opp., p. 9:6-21.)

Based on the Kirnos Declaration and the Court's experience, the Court finds Plaintiff's requested hourly rates are reasonable for practitioners with comparable experience in Song-Beverly matters. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 473-474 [approving \$575 per hour in Los Angeles lemon-law litigation].) Given Mr. Kirnos' unique position as managing partner, Mr. Swanson's position as partner, and Mr. Donnelly's role as of counsel with over 30 years of experience, the Court is persuaded that their higher rates are justified. The Court notes, however, that approval of these rates would not in most cases serve as a benchmark for rates charged by other partners or counsel in other representations.

Accordingly, the rates requested by Plaintiff's counsel is accepted as requested.

ii. Reasonableness of Hours Billed

Plaintiff's counsel contends that they reasonably spent 74.9 hours in prosecuting this action, including the actually-incurred fees in bringing the present fee motion and anticipated fees in reviewing the opposition, drafting a reply, and preparing for and attending the hearing, and has provided detailed billing records reflecting the work. (Kirnos Decl., Ex. A.)

In opposition, Defendant argues that Plaintiff's request should be denied or significantly reduced, objecting specifically to 42 independent entries. (Freedman Decl., Ex. 1.) Generally, Defendant objects to recovery of fees due to use of templates and excessive billing, including billing for internal communication, and administrative tasks. Defendant also objects heavily to KLG's billing on the grounds that the case was overstaffed by 12 billing timekeepers, resulting in duplicative work. (Opp., 11:1-24.) Defendant broadly objects to the following charges:

1. 16.1 hours (\$6,037.50) billed for Plaintiff's motion to compel further discovery responses for which the Court already awarded sanctions (Opp., p. 2:20-23)
2. 8.5 hours (\$3,482) for duplicative and excessive work made necessary from overstaffing the matter (Opp., p. 2:24-25)
3. 2.8 hours (\$980) employing impermissible flat-rate billing practices in reviewing discovery responses (Opp., p. 2:26-3:2)
4. 1.3 hours (\$461.50) for work that could not have been performed in this matter (Opp., p. 3:2-6)
 - a. KLG bills for attendance at the hearing on Plaintiff's motion to compel the deposition of Defendant's PMK, but the Court ruled on the papers and took the hearing off calendar, so no appearances were necessary.
 - b. KLG has billed for communications with Timonthy Workman, who did not work at Clark, prior to this case being transferred to Nelson Mullins.

On reply, Plaintiff reiterates his moving arguments and argue that the fees are proper, reasonable, and recoverable.

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, supra, 144 Cal.App.4th at 817.) The party seeking attorney fees "'is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him].'" (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The detailed billing records Plaintiff's counsel has submitted to validate the billed hours "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, supra, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id at 396-97.)

Here, the Court finds most of Plaintiff's counsel's billing reasonable. From January 11, 2023 through March 16, 2026, KLG billed for work that appears reasonably necessary for the prosecution of Plaintiff's case, including client communication, drafting documents and discovery, communication with Defense counsel, preparing for and attending depositions, reviewing document production, and engaging in settlement discussions. (Kirnos Decl., Ex. A.)

The Court finds 3.4 hours unreasonable for drafting the present fee motion and corresponding declaration, and strikes 1.0 hour (\$450), including time spent review of billing and review of the case file.

Plaintiff submits the Declaration of Ms. Sapra, who declares she spent 2.0 hours reviewing Defendant's opposition and 1.5 hours preparing the reply. (Sapra Reply Decl., ¶ 4.) The Court finds 2.0 hours spent reviewing the opposition unreasonable and strikes 1.5 hours (\$675) from the time spent reviewing. The Court finds 1.0 hour for preparing for and appearing remotely at the hearing reasonable.

The Court also reduces the total award by \$1,000 already awarded as monetary sanctions in connection with Plaintiff's motion to compel. The Court declines to strike any additional amount in connection with the preparation of the motion to compel on the grounds that fees have been awarded as sanctions.

The Court strikes 1.2 hour (\$420) billed for attendance at the hearing on Plaintiff's motion to compel PMQ hearing and drafting the results email from the hearing, as that hearing was taken off calendar by the Court.

The Court also strikes 0.1 hour (\$41.50) billed on July 14, 2023 for "Confirm extension to Plaintiff's deadline to file motion to compel further discovery responses with Timothy Workman" as Defendant asserts Mr. Workman was not employed at Clark Hill, counsel of record, in July of 2023, has never worked at Clark Hill, and thus, this entry could not have properly been billed to this case. (Freedman Decl., Ex. 1, ¶ 17.) Plaintiff does not dispute this assertion on reply.

Furthermore, many of the charges included in counsel's billing statement are clerical or administrative by nature or otherwise include internal communications between the numerous timekeepers who billed on this case. These charges include calendaring dates, discussing the case with colleagues, forwarding emails internally, updating deadlines, reviewing dates and deadlines, and formatting or otherwise preparing documentation for filing or service. While calendaring dates, properly recording and saving client files and Court documents, and coordinating appearances by counsel are important and necessary tasks in litigation, these tasks are secretarial in nature and do not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in *Johnson v. Georgia Highway Express, Inc.*, 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on this task to be reasonable absent evidence to the contrary, billing these tasks as attorney or paralegal fees is unwarranted.

The Court also agrees with Defendant that many of the charges are billed for substantive work and "review of case file" or similar. Therefore, the Court strikes 13.5 hours (\$4,050.50) for clerical and administrative work, internal correspondence, and duplicative work. (See, e.g., time entries on 2/14/24, 2/20/24, 5/28/24, 6/3/24, 8/27/24, 10/22/24, 2/3/25, 2/10/25, 2/13/25, etc. [non-exhaustive].)

Aside from the entries specifically identified above as being reduced or stricken entirely, the Court finds these billing entries reasonable and necessarily incurred in litigation absent evidence from Defendant to the contrary.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney's fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys.

From Plaintiff's \$28,199.50 attorney's fee request for 74.9 hours of work, the Court strikes \$5,637.00 for 17.3 hours stricken and \$1,000 in consideration of the monetary sanctions awarded in granting Plaintiff's motion to compel.

Accordingly, Plaintiff is entitled to recover \$21,562.50 in reasonably incurred attorney's fees.

b. Fee Multiplier

Plaintiff requests a fee multiplier of 1.5 to the lodestar amount, for a total of \$14,099.75 for the delay in payment and the risk associated with contingency-based representation. (Notice of Motion, p. i:10; Motion, p. 12:24-13:26.)

Once the Court has determined an appropriate lodestar figure, the court may then determine whether that figure should be adjusted with a positive or negative multiplier. (*Graham v. DaimlerChrysler Corp.*, (2005) 34 Cal.4th 553, 582.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; (4) the skill exhibited by counsel; (5) the extent to which the nature of the litigation precluded other employment by the attorneys; and (6) the contingent nature of the fee award based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (*Consumer Privacy Cases*, (2009) 175 Cal.App.4th 545, 556; *Robertson*, supra, 144 Cal.App.4th at 819.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (*Graham* supra, 34 Cal.4th at 582.)

In opposition, Defendant argues that this case does not warrant a fee multiplier because there was nothing novel, difficult, or complex about the present case. (Opp., p. 12:4-5.) Defendant also argues that the risk of not obtaining fees in the present case was low given KLG's 99% advertised success rate and the mandatory attorney's fees provision under the Song-Beverly Act. (Opp., p. 12:9-12.)

The Court finds that a multiplier is not warranted in this case. While Plaintiff received a favorable result in settlement, and while Plaintiff's counsel took this case on contingency, this is a standard Song-Beverly action. While there is inherent risk in taking a case on contingency, the risk in this action is minimal considering a prevailing buyer in a Song-Beverly action is legally entitled to recovery of all reasonable and necessary attorney's fees, costs, and expenses incurred pursuant to Code of Civil Procedure section 1794, subdivision (d). Based on the relatively sparse record, and the moving and opposition papers filed for the present motion, the Court does not find the novelty or difficulty of the legal and factual issues involved, nor the skill required of Plaintiff's counsel in this case, rising to the level of warranting a multiplier.

Accordingly, Plaintiff's request for a fee multiplier is DENIED.

c. Costs and Expenses

Plaintiff requests costs and expenses totaling \$5,493.20 (Memorandum of Costs, p. 1.) The costs and expenses requested include filing and motion fees, jury fees, deposition costs, service of process costs, court reporter fees, attorney services and messenger court filings and service, court appearance professionals, and minute orders. (Memorandum of Costs.)

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other

hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ibid.)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) "Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).)

In opposition to Plaintiff's request, Defendant objects to the costs for deposition subpoenas served on Trust Palmdale Honda and AutoNation Honda Valencia, totaling \$275 and \$396.37 respectively. (Opp., p. 13:10-11.) Defendant argues the amounts are excessive and unreasonable because both entities produced only 51 pages each, and the deposition subpoenas for business records was unnecessary, as Defendant produced all of the repair records from both dealerships. (Opp., p. 13:11-13, 20-26; Freedman Decl., ¶ 17.) Plaintiff's reply is silent on the issue of costs.

To start, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) "[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from" the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 ["where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed"].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (Bender, supra, 217 Cal.App.4th at 989.)

Here, the burden is on Defendant to show that the costs included on Plaintiff's Memorandums of Costs are unreasonable. Defendant has provided no evidence that any of these fees or costs are unreasonable. While Plaintiff may not have received any new documentation from either entity subpoenaed, the Court cannot find that the issuance of subpoenas was facially unreasonable, unnecessary, or improper. Furthermore, the Memorandum of Costs was served on February 27, 2026. Defendant did not object to the Memorandum of Costs within 15 days after service as required. (Cal. Rules of Court, rule 3.1700(b)(1).)

Accordingly, Plaintiff's request for attorney's fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of \$27,055.70 consisting of \$21,562.50 in attorney's fees and \$5,493.20 in costs.

IV. Conclusion

Plaintiff Arturo Cardenas' Motion for Attorney's Fees is GRANTED in the amount of \$27,055.70. Defendant shall render payment in full to Knight Law Group, LLP within 30 days of this Order unless otherwise agreed upon by the parties.